

**TOWN OF MILLVILLE**

**RESULTS**

**ANNUAL TOWN MEETING**



**MONDAY, MAY 13, 2024**

**MILLVILLE ELEMENTARY SCHOOL**

**7:00 P.M.**

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## **ARTICLE 1. MONETARY INCREASES.**

To see if the Town will vote to authorize that any motion or amendment to increase any monetary articles or line items as recommended by the Finance Committee, presented at this Town Meeting, shall be Out of Order unless such motion or amendment states the source of funding as being from available free cash, or the line item, article, or other funding source that will be reduced by the same amount; or take any other action in relation thereto. *Submitted by: Finance Committee*

A motion was made and duly seconded that the Town vote that any motion or amendment to increase any monetary articles or line items as recommended by the Finance Committee, presented at this Town Meeting, shall be Out of Order unless such motion or amendment states the source of funding as being from available free cash, or the line item, article, or other funding sources that will be reduced by the same amount.

Moderator declared the vote unanimous.

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## **ARTICLE 2. BILLS OF PRIOR FISCAL YEAR.**

To see if the Town will vote pursuant to G.L. c.44, §64 to raise and appropriate and/or transfer from available funds such sums of money necessary for the purpose of paying outstanding bills from prior fiscal years, and/or take any other action relative thereto.

A motion was made and duly seconded to take no action on this article.

Moderator declared the vote unanimous.

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## **ARTICLE 3. SNOW AND ICE DEFICIT.**

To see if the Town will vote to transfer and appropriate a sum of monies from the Free Cash or available funds to fund deficits incurred with the Snow/Ice budget per M.G.L. Chapter 44; Section 31D; or take any other action in relation thereto.

A motion was made and duly seconded that the Town vote to transfer **Forty-Eight Thousand Six Hundred Forty-Four Dollars and 72 cents (\$48,644.72)** from Free Cash to fund the deficit incurred with the Snow/Ice budget per MGL Chapter 44, Section 31D.

Moderator declared the vote unanimous.

#### **ARTICLE 4. HIGHWAY DEPARTMENT – CHAPTER 90.**

To see if the Town will vote to accept and expend such sum or sums of money allotted or to be allotted to the Town from the Commonwealth of Massachusetts under the provisions of M.G.L. Chapter 90 or under any other state roadway reimbursement programs for fiscal year 2025, and to authorize the Board of Selectmen to enter into a contract or contracts with the Massachusetts Department of Transportation Highway Division for such purposes; and, further, to authorize the Treasurer, with the approval of the Board of Selectmen, to borrow in anticipation of 100% reimbursement of said amounts; or to take any other action relative thereto.

A motion was made and duly seconded that the Town vote to accept and expend such sum or sums of money allotted or to be allotted to the Town from the Commonwealth of Massachusetts under the provisions of MGL Chapter 90 or under any other state roadway reimbursement programs for the fiscal year 2025, and to authorize the Board of Selectmen to enter into a contract or contracts with the Massachusetts Department of Transportation Highway Division for such purposes; and, further, to authorize the Treasurer, with the approval of the Board of Selectmen, to borrow in anticipation of 100% reimbursement of said amounts pursuant to MGL 44 or any other enabling authority.

Moderator declared the vote unanimous.

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#### **ARTICLE 5. CABLE LICENSE FEES.**

To see if the Town will vote to transfer from the PEG Access and Cable Related Funds account the sum of **Seven Thousand Five Hundred and 00/100 Dollars (\$7,500.00)** to forward to the Superintendent of Schools of the Blackstone-Millville Regional School District for use by the Director of Library and Media Services to enhance the curriculum offerings that are available in the School District; or take any other action in relation thereto. *Submitted by: Board of Selectmen and Cable Advisory Committee*

A motion was made and duly seconded that the Town vote to transfer from the PEG Access and Cable Related Funds account the sum of **Seven Thousand Five Hundred and 00/100 Dollars (\$7,500.00)** to be forwarded to the Superintendent of Schools of the Blackstone-Millville Regional School District for use by the Director of Library and Media Services to enhance the curriculum offerings that are available in the School District.

Moderator declared the vote unanimous.

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#### **ARTICLE 6. Highway and Bridge Stabilization Fund.**

To see if the Town will vote to transfer from any available funds a sum of money to the Highway and Bridge Stabilization Fund; or take any other action relative thereto.

A motion was made and duly seconded that the Town vote transfer from free cash the amount of **Forty-Five Thousand Dollars (\$45,000)** to be placed in the Highway and Bridge Stabilization Fund.

Moderator declared the vote unanimous.

**ARTICLE 7. CAPITAL STABILIZATION FUND.**

To see if the Town will vote to transfer from any available funds a sum of money to the Capital Stabilization Fund; or take any other action relative thereto.

A motion was made and duly seconded to take no action on this article.

Moderator declared the vote unanimous.

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**ARTICLE 8. GENERAL STABILIZATION FUND.**

To see if the Town will vote to transfer from any available funds a sum of money to be placed in the General Stabilization Fund; or take any other action in relation thereto.

A motion was made and duly seconded that the Town vote to transfer from free cash the amount of **One Hundred Seventy-Five Thousand Dollars (\$175,000)** to be placed in the General Stabilization Fund.

Moderator declared the vote passed.

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**ARTICLE 9. FUND OTHER POST-EMPLOYMENT BENEFITS (OPEB).**

To see if the Town will vote to raise and appropriate or transfer from any available funds a sum of money to the OPEB Liability Trust Fund for the purpose of reducing the unfunded actuarial liability of health care and other post-employment benefits of retired employees; or take any other action in relation thereto.

A motion was made and duly seconded to take no action on this article.

Moderator declared the vote unanimous.

## **ARTICLE 10. FISCAL YEAR 2025 BUDGET.**

To see if the Town will vote to raise and appropriate, to borrow, or to transfer from available funds such sums of money as may be deemed necessary to defray Town expenses for all departments, including debt and interest and compensation for Town Officers, and to provide for the Reserve Fund for the Fiscal Year beginning July 1, 2024 and ending June 30, 2025; or take any other action in relation thereto.

A motion was made and duly seconded that the Town vote to appropriate the sum of **Seven Million Seven Hundred Eighty-Nine Thousand Two Hundred Seventy-Seven Dollars (\$7,789,277)** as deemed necessary to defray Town expenses for all departments, including debt and interest and compensation for Town Officers, and to provide for the Reserve Fund for the Fiscal Year beginning July 1, 2024 and ending June 30, 2025, with such appropriation to be funded as follows: Raise and Appropriate the sum of **Seven Million Three Hundred Two Thousand One Hundred Forty-One Dollars (\$7,302,141)** and to transfer the sum of **Forty-Eight Thousand Four Hundred (\$48,400)** from the Septic Title V account, and **Four Hundred Thirty-Eight Thousand Seven Hundred Thirty-Six (\$438,736)** from Free Cash, for a total of **Seven Million Seven Hundred Eighty-Nine Thousand Two Hundred Seventy-Seven (\$7,789,277)** as set forth in the budget document presented to Town Meeting.

Moderator declared the vote passed.

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## **ARTICLE 11. BMR OTHER POST EMPLOYMENT BENEFITS**

To see if the Town will raise and appropriate or transfer from available funds the sum of \$25,700 into Other Post-Employment Benefits Liability Trust Fund (OPEB Fund) of the Blackstone-Millville Regional School District established under General Laws Chapter 32B, Section 20, said funds to be used only to pay some portion of health benefits for retirees from the Blackstone-Millville Regional School District or take any other action relative there, too.

A motion was made and duly seconded to take no action on this article.

Moderator declared the vote unanimous.

## **ARTICLE 12. BMR SCHOOL COMMITTEE STIPENDS**

To see if the town will vote to authorize the members of the Blackstone Millville Regional District School Committee to be compensated for their services as such members and to set the amount of said compensation at \$1,500.00 per member and \$1,800.00 for the chairman, such compensation to be paid in three (3) equal installments in the months of July, November and March provided, however, that no such installment shall be paid a) to a member who is not in attendance at least 60% of the meetings of the District School Committee (excluding, however, any meetings, not attended by such members due to the provisions of Massachusetts General Law Chapter 268A) in the twelve (12) month period prior to July 1, November 1, or March 1, as the case may be, if such a member has been a member for twelve (12) months or more months prior to each of said dates; or b) to a member who is not attend, at least 60% of the meetings of the District School Committee (excluding, however, any meetings, not attended by such member due to the provisions of Massachusetts General Law Chapter 268A) in the period prior to each of said dates, or take any other action in relation thereto.

A motion was made and duly seconded that the town vote to authorize the members of the Blackstone Millville Regional District School Committee to be compensated for their services as such members and to set the annual amount of said compensation at **One Thousand Five Hundred Dollars (\$1500.00)** per member and **One Thousand Eight Hundred Dollars (\$1800.00)** for the Chairman, as printed in the warrant.

Moderator declared the vote passed.

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## **ARTICLE 13. CABLE APPROPRIATIONS**

To see if the town will vote to appropriate \$37,500 from the Peg Access and Cable Fund available fund balance to fund the cable operation for FY2025, starting July 1, 2024 through June 30, 2025 under the direction of the Cable Coordinator, said funds to be spent on professional wages in the amount of \$20,000, part time wages \$2,500 and expenses \$15,000.  
*Submitted by: Town Accountant and Cable Advisory Committee*

I move that the town vote to appropriate **Thirty-Seven Thousand Five Hundred Dollars (\$37,500)** from the Peg Access and Cable Fund available fund balance to fund the cable operation for FY2025, starting July 1, 2024 through June 30, 2025 under the direction of the Cable Coordinator said funds to be spent on professional wages in the amount of **Twenty Thousand Dollars (\$20,000)**, part time wages **Two Thousand Five Hundred Dollars (\$2,500)** and expenses **Fifteen Thousand Dollars (\$15,000)**.

Moderator declared the vote unanimous.

#### **ARTICLE 14. Board of Health Member as Board of Health Agent**

To see if the Town will vote pursuant to General Laws Chapter 268A, Section 21A to authorize the Board of Health to appoint a Board member to serve as Health Agent, or take any other action relative thereto.

A motion was made and duly seconded that the Town vote pursuant to General Laws Chapter 268A, Section 21A to authorize the Board of Health to appoint a Board member to serve as Health Agent.

Moderator declared the vote passes.

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#### **ARTICLE 15: BVT Warrant Item:**

To see if the Town will vote to approve the \$10,000,000 debt authorized by the Blackstone Valley Vocational Regional District School Committee on February 15, 2024 and amended by its actions of March 14, 2024 to pay costs of roof reconstruction and the replacement to energy efficient rooftop HVAC units at the Blackstone Valley Regional Vocational Technical High School, located at 65 Pleasant Street, Upton, MA including the payment of all costs incidental or related thereto, or to take any other action relative thereto. Such debt approval by the Town to be contingent upon the District's ability to secure grant approval from the Massachusetts School Building Authority Accelerated Repair grant program.

A motion was made and duly seconded that the Town vote to approve the **Ten Million Dollard (\$10,000,000)** debt authorized by the Blackstone Valley Vocational Regional District School Committee on February 15, 2024 and amended by its actions of March 14, 2024 to pay costs of roof reconstruction and the replacement to energy efficient rooftop HVAC units at the Blackstone Valley Regional Vocational Technical High School, located at 65 Pleasant Street, Upton, MA including the payment of all costs incidental or related thereto.

Moderator declared the vote unanimous.

**ARTICLE 16: MES Water Operations Funding:**

To see if the town would vote to appropriate up to \$90,000 to fund MES water operating costs outside of the terms of the Blackstone-Millville Regional School District Amended Regional Agreement using Free Cash or General Stabilization Funds.

A motion was made and duly seconded to take no action on this article.

Moderator declared the vote unanimous.

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**ARTICLE 17: Zoning ByLaw Changes – Overlay District Clarification:**

To see if the town would vote to amend the Millville Zoning Bylaw as noted below.

Move that §100-201B be rewritten to include all overlay districts, changing the text to the following:

Overlay districts. To carry out the purposes of this Zoning Bylaw, the Town of Millville is also divided into the following districts that overlay the districts established in Subsection A above:

- (1) Renewable Energy Overlay District: Map No. 120, Parcel No. 28; Map No. 127, Parcel No. 1; Map No. 122, Parcel No. 8; Map No. 122, Parcel No. 9; Map No. 122, Parcel No. 10; Map No. 122, Parcel No. 10.1
- (2) Floodplain District, as laid out in §100-802
- (3) Wireless Communications Facility District: Map No. 122, Parcel No. 8, 9, 10, and 10.1

A motion was made and duly seconded that the town vote to amend the Millville Zoning Bylaws as printed in the warrant for Article 17.

Moderator declared the vote unanimous.

## **ARTICLE 18: Zoning ByLaw Changes – Permitted as a Homonym:**

To see if the town would vote to amend the Millville Zoning Bylaw as noted below.

Move that the following changes be made to the Millville Zoning Bylaw:

1. In §100-103, that the word “permitted” be changed to “permissible”
2. In §100-203, that the word “permitted” be changed to “permissible”
3. In §100-301 A, that the word “permitted” be changed to “permissible”
4. In §100-301 A(1), that the phrase “Use permitted” be changed to “Use allowed by right”
5. In §100-301 B, that both instances of the word “permitted” be changed to “permissible”
6. In §100-303 D(3), that the sentence “No outside storage is permitted.” be changed to “Outside storage is prohibited.”
7. In §100-303 E(2), that the sentence “No outside storage of marijuana, related supplies, or education materials is permitted” be changed to “Outside storage of marijuana, related supplies, or education materials is prohibited.”
8. In §100-303 I, that the word “permitted” be changed to “issued”
9. In §100-501, that the word “permitted” be changed to “described”
10. In §100-501 H, that the word “permits” be changed to “enables”
11. In §100-503 A, that the phrase “permitted as a matter of right” be changed to “allowed by right”
12. In §100-503 B, that the word “permitted” be changed to “allowed”
13. In §100-503 B(1), that the word “permitted” be changed to “permissible”
14. In §100-503 B(2), that the word “permitted” be changed to “allowed” [“at any given time”?]
15. In §100-503 B(3), that the phrase “except signs shall be permitted [...]” be changed to “except in the case of a valid sign permit [...]”
16. In §100-504, that the word “permitted” be changed to “allowed by special permit by the Planning Board”
17. In §100-505, that the word “permitted” be changed to “allowed”
18. In §100-606 A(2), that the phrase “permitted as of right” be changed to “allowed by right”
19. In §100-704 B, that the word “permitted” be changed to “allowed by special permit”
20. In §100-707 E, that the word “permitted” be omitted from the sentence
21. In §100-708 E, that the word “permitted” be changed to “allowed”
22. In §100-804 A, that both instances of the word “permitted” be changed to “allowed”
23. In §100-804B, that the three instances of the word “permitted” all be changed to “allowed”
24. In §100-905 E, that the word “permitted” be changed to “allowed”

25. In §100-1008, that the phrase “permitted without modification thereof.” be changed to “made without approval of such a modification by the Planning Board.”
26. In §100-1104 A, that the word “permitted” be changed to “allowed by permit only”

A motion was made and duly seconded that the town vote to amend the Millville Zoning Bylaws as printed in the warrant for Article 18.

Moderator declared the vote unanimous.

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**ARTICLE 19: Zoning ByLaw Changes - Site Plan Review Text Changes:**

To see if the town would vote to amend the Millville Zoning Bylaw as noted below.

Move that Article X of the Millville Zoning Bylaws be revised in the following two sections:

- 1) Change the text of “§100-1008 Deviation from approved plan” to the following: “Any changes to an approved site plan must be submitted to the Planning Board with a written description of the proposed modifications and reasons for such modification. No changes to an approved site plan shall be authorized unless (1) the Planning Board makes a written determination that the changes are minor and do not require a public hearing or (2) the changes are approved at a public hearing held in accordance with and subject to the requirements of this section. A copy of the Planning Board’s determination and revised plans shall be filed with the Town Clerk and the Building Inspector.”
- 2) Change the text of “§100-1014 Lapse of approval” to the following: “Site plan approval shall lapse after two years from the final approval if a substantial use in accordance with such approved plans has not commenced except for good cause. Such approval may, for good cause, be extended in writing by the Planning Board upon the written request of the applicant, within this two-year period.”

A motion was made and duly seconded that the town vote to amend the Millville Zoning Bylaws as printed in the warrant for Article 19.

Moderator declared the vote unanimous.

## **ARTICLE 20: Zoning ByLaw Changes - Planning Board Membership and Duties:**

To see if the town would vote to amend the Millville Zoning Bylaw as noted below.

Move that §100-605, "Associate Planning Board Members" be replaced with the following text, which includes more general information on the Planning Board, as well as the Associate Planning Board Member description:

### **§100-605 Planning Board**

- A. Elections. The Town of Millville shall elect members to a Planning Board, established pursuant to §81A of the Massachusetts General Laws and all amendments thereto, which shall consist of five members and one associate member. Members are elected for a five-year term and shall be made on or before the first Monday of April each year. In the event of a vacancy, the Planning Board may make a recommendation to the Board of Selectmen to appoint an interim member for the remainder of the year until the next annual Town Election. The interim member may request to be added to the ballot, per Town Bylaw, to run for the remainder of the five-year term of the filled vacancy.
- B. Special Permits. The Planning Board shall be the Special Permit Granting Authority for the purposes of this Zoning Bylaw.
- C. Site Plan Review. The Planning Board shall review site plans in accordance with Article X.
- D. Associate Member. There shall be one associate member of the Planning Board who shall be appointed by the Board of Selectmen to serve a term of one year. In the event of a vacancy in the position of associate member, the position shall be filled by appointment of the Board of Selectmen to fill the remainder of the one-year term. The Chairman of the Planning Board may require such associate member to be in attendance at special permit proceedings and hearings and may designate such associate member to sit on the Planning Board for the purpose of acting on a special permit application in the case of absence, inability to act or conflict of interest on the part of any member of the Planning Board or in the event of a vacancy on the Planning Board during special permit application proceedings and hearings. In no case, however, shall more than five members in total, including the associate member, acting as the Planning Board, take any action on any special permit.

A motion was made and duly seconded that the town vote to amend the Millville Zoning Bylaws as printed in the warrant for Article 20.

Moderator declared the vote unanimous.

**ARTICLE 21: Amend Town of Millville Bylaws, Chapter 20 - Personnel.**

To see if the Town will vote to amend the Town Bylaw, Chapter 20, §20-8. D. Compensation System by replacing the existing Classification and Compensation Plan Effective July 1, 2023 with the following Classification and Compensation Plan Effective July 1, 2024 as follows, or take any action relative thereto:

**CLASSIFICATION and COMPENSATION PLAN**  
**Effective July 1, 2024**

| <u>POSITIONS</u>                                                                                                                                           | <u>GRADE</u> | <u>MINIMUM</u> | <u>MEDIUM</u> | <u>MAXIMUM</u> |
|------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------|----------------|---------------|----------------|
| Highway Laborer<br>Library Assistant<br>Clerical Worker<br>Janitor<br>Camera Operator<br>Van Driver                                                        | 1            | \$15.00/hr     | \$15.97/hr    | \$16.55/hr     |
| Outreach Worker<br>Custodian<br>Cable Access Coordinator                                                                                                   | 2            | \$15.00/hr     | \$17.75/hr    | \$20.10/hr     |
| Executive Assistant *<br>Assistant Town Clerk<br>Highway Assistant<br>Building Assistant                                                                   | 3            | \$16.55/hr     | \$20.10/hr    | \$23.66/hr     |
| Assistant Collector<br>Assistant Assessor<br>Town Planner<br>Librarian<br>Senior Center Director<br>Deputy Fire Chief (non-bargaining unit employees only) | 4            | \$18.93/hr     | \$22.48/hr    | \$26.02/hr     |
| Building Commissioner - PT 5                                                                                                                               |              | \$31.83/hr.    | \$37.13/hr.   | \$42.44/hr.    |
| Town Accountant - FT<br>(Salary – 30 hrs/wk)                                                                                                               | 6            | \$40,314/yr    | \$47,740/yr   | \$55,167/yr    |
| Treasurer/Collector - FT<br>(Salary - 30 hrs/wk)                                                                                                           | 7            | \$44,558/yr    | \$50,923/yr   | \$58,350/yr    |
| Fire Chief - PT<br>(Employment Contract)                                                                                                                   |              |                |               |                |
| Town Administrator -<br>(Employment Contract)                                                                                                              |              |                |               |                |
| Police Chief -<br>(Employment Contract)                                                                                                                    |              |                |               |                |

\* Business Office, Board of Health, Town Hall, Communications

A motion was made and duly seconded that the Town vote to amend the Town Bylaw, Chapter 20, §20-8. D. Compensation System by replacing the existing Classification and Compensation Plan Effective July 1, 2023 with the Classification and Compensation Plan Effective July 1, 2024 as printed in the warrant.

Moderator declared the vote unanimous.

Respectfully submitted,

Diane C. Lockwood, CMC  
Town Clerk  
Notary Public, Justice of the Peace